

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED

IN CLERK'S OFFICE

U.S. DISTRICT COURT E.D.N.Y.

★ OCT 12 2011 ★

KAMEL BRANHAM,

Plaintiff BROOKLYN OFFICE

-against-

CV11-4949

COMPLAINT AND
JURY DEMAND

THE CITY OF NEW YORK, POLICE OFFICER :
MICHAEL KOTLYAR, POLICE OFFICER :
MOSES LISSETTE, and POLICE OFFICER :
MICHAEL GONZALEZ of the :
NEW YORK CITY POLICE DEPARTMENT :
Defendant(s), :

BLOCK, J.

AZRACK, M.J.

x

PRELIMINARY STATEMENT

1. This is an action for monetary damages (compensatory and punitive) against THE CITY OF NEW YORK and POLICE OFFICERS MICHAEL KOTLYAR, MOSES LISSETTE and MICHAEL GONZALEZ of the NEW YORK CITY POLICE DEPARTMENT, arising out of the false arrest, false imprisonment, and malicious prosecution of KAMEL BRANHAM.

2. On OCTOBER 13, 2008, POLICE OFFICERS of the NEW YORK CITY POLICE DEPARTMENT including POLICE OFFICERS MICHAEL KOTLYAR, MOSES LISSETTE and MICHAEL GONZALEZ acting under the color of state law, intentionally and willfully subjected plaintiff to, *inter alia*, false arrest, false imprisonment and detention, and malicious prosecution for acts of which plaintiff was innocent. This unconstitutional and unreasonable seizure of the plaintiff and his property was in violation of plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

3. The Plaintiff, KAMEL BRANHAM, through his attorneys, complaining of the defendants, respectfully alleges:

JURISDICTION

4. This action is brought under 28 U.S.C. §§ 1331 and 1343, 42 U.S.C. §§ 1983, 1985 and 1988 and the Fourth, Fifth and Fifteenth Amendments to the Constitution of the United States. Pendant Jurisdiction, pendant party jurisdiction, and supplementary jurisdiction over plaintiff's state law claims is asserted.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Eastern District of New York in that the claims alleged in the complaint occurred within the boundaries of the Eastern District of New York, particularly Kings County.

PARTIES

7. Plaintiff at all times relevant hereto resided in the City and State of New York County of Kings.

8. That at all times hereinafter mentioned, and upon information and belief, the defendant, THE CITY OF NEW YORK, was at all times relevant hereto, a municipal corporation duly organized and existing under the laws, statutes and charters of the State of New York.

9. THE NEW YORK CITY POLICE DEPARTMENT was at all times relevant hereto, an agency of the defendant THE CITY OF NEW YORK.

10. That at all times hereinafter mentioned, and on information and belief, the defendants POLICE OFFICERS MICHAEL KOTLYAR, MOSES LISSETTE, and MICHAEL GONZALEZ were at all times relevant hereto, employees of the defendant CITY OF NEW YORK, as police officers employed by THE NEW YORK CITY POLICE DEPARTMENT.

11. At all times mentioned herein, defendants were acting under color of state and local law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of the City of New York and the State of New York.

12. That at all times hereinafter mentioned, and upon information and belief, the individual defendants are named herein both personally and in their official representative capacities as police officers employed by the defendant, THE CITY OF NEW YORK. And that each and all of the acts of the individual defendants alleged herein were done by the individual defendants and each of them under cover and pretense of the statutes and laws of the State of New York, and under and by virtue of their authority as police officers and employees of defendant, THE CITY OF NEW YORK.

13. That as a result of the foregoing, the defendant, THE CITY OF NEW YORK, is liable for the individual defendant's acts under to the doctrine of "respondeat superior."

NOTICE OF CLAIM

14. Within 90 days of the occurrence of the incident, plaintiffs filed written Notice of Claim with the City of New York. This matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

15. On October 13, 2008, at approximately 11:35 p.m., in the vicinity of 2 Hanson Place, a Buffalo Wild Wings restaurant in Brooklyn, NY, members of the New York City Police Department, including defendant POLICE OFFICER MICHAEL KOTLYAR, stopped and arrested plaintiff. POLICE OFFICER MICHAEL KOTLYAR then removed him to the 88th precinct. From the 88th precinct the plaintiff was taken to Central Booking at 120 Schermerhorn Street where he remained in custody until his arraignment. Plaintiff was required to appear numerous times on this case in Kings County Criminal Court until his case was dismissed. At the time of plaintiff's arrest POLICE OFFICER MICHAEL GONZALEZ was off duty and

was at the Buffalo Wild Wings restaurant with three other individuals. Plaintiff was with a separate group of people at the Buffalo Wild Wings restaurant to celebrate plaintiff's birthday. At some point the two groups engaged in an argument, although at no point was plaintiff involved in the argument nor was he present when any argument between the two groups transpired. When plaintiff was stopped by the police he was carrying an injured friend Eugene Davison, who was also arrested.

16. As a result, defendants imprisoned and detained plaintiff, restrained him, and deprived him of his liberty and property without any right to do so, and against the will of the plaintiff. In addition, as a direct and proximate result of plaintiff's arrest he was suspended from his job at the New York City Department of Juvenile Justice.

17. The arrest of the plaintiff was committed by the defendants without legal process and without probable cause.

18. The plaintiff remained in custody for approximately one day. The plaintiff was required to appear in Kings County Criminal Court numerous times until his case was dismissed.

19. Defendants acted maliciously and intentionally.

20. As a direct and proximate result of the acts of defendants, plaintiff suffered injuries including but not limited to, embarrassment, humiliation, loss of liberty, psychological and physical injury, pain, suffering, emotional distress and mental anguish.

FIRST CLAIM FOR RELIEF
(FALSE ARREST AND ILLEGAL IMPRISONMENT)

21. Paragraphs 1 through 20 are herein incorporated by reference.

22. Defendants subjected plaintiff to false arrest, imprisonment, and deprivation of liberty without probable cause.

23. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are

liable to plaintiff under 42 U.S.C. §§ 1983 and 1985 and the New York State Constitution.

24. As a result of the false arrest, imprisonment, and deprivation of liberty, plaintiff was damaged in the sum of One Million (\$1,000,000.00) Dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally as follows:

A. In favor of the plaintiff in the amount of One Million (\$1,000,000.00) Dollars;

B. Awarding plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;

C. Awarding plaintiff reasonable attorney's fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

SECOND CLAIM FOR RELIEF
(MUNICIPAL LIABILITY)

25. Paragraphs 1 through 24 are incorporated herein by reference.

26. Defendant CITY OF NEW YORK is liable for the damages suffered by the plaintiff as a result of the conduct of its employees, agents, and servants.

27. Defendant CITY OF NEW YORK knew or should have known of their employees', agents', or servants' propensity to engage in the illegal and wrongful acts detailed above.

28. Upon information and belief, defendants and their supervisors have in the past falsely arrested individuals without probable cause, and made, and allowed other fellow police officers to make false entries in official police department records to cover up and hide their wrongful conduct.

29. Defendant CITY OF NEW YORK has failed to take steps necessary to discipline, train, supervise or otherwise correct the improper,

illegal conduct of the individual defendants in this and in similar cases involving misconduct.

30. Defendant CITY OF NEW YORK has damaged the plaintiff by its failure to properly supervise, train, discipline, review, remove, or correct the illegal and improper acts of its employees, agents or servants in this and in similar cases involving police misconduct.

31. Defendants subjected plaintiff to false arrest and false imprisonment.

32. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of the defendant CITY OF NEW YORK in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally as follows:

A. In favor of the plaintiff in the amount of One Million (\$1,000,000.00) Dollars;

B. Awarding plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;

C. Awarding plaintiff reasonable attorney's fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

THIRD CLAIM FOR RELIEF
(FOURTH AMENDMENT)

33. Paragraphs 1 through 32 are incorporated herein by reference.

34. Defendants POLICE OFFICERS MICHAEL KOTLYAR, MOSES LISSETTE and MICHAEL GONZALEZ illegally arrested plaintiff subjecting him to false arrest, imprisonment and deprivation of liberty without probable cause.

35. That as a result of the foregoing, the plaintiff has been deprived of his following rights, privileges and immunities secured him by the

constitution and the laws of the United States: the right to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments; the rights of the plaintiff not to be deprived of life, liberty or property without due process of law under the Fourth and Fourteenth Amendments; and the right to be free from a deprivation of his civil rights in violation of the statutes made and provided.

36. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of the defendant CITY OF NEW YORK in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally as follows:

- A. In favor of the plaintiff in the amount of One Million (\$1,000,000.00) Dollars;
- B. Awarding plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;
- C. Awarding plaintiff reasonable attorney's fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

FOURTH CLAIM FOR RELIEF
(FOURTEENTH AMENDMENT)

37. Paragraphs 1 through 36 are incorporated herein by reference.

38. Defendants POLICE OFFICERS MICHAEL KOTLYAR, MOSES LISSETTE and MICHAEL GONZALEZ illegally arrested plaintiff subjecting him to false arrest, imprisonment and deprivation of liberty without probable cause.

39. That as a result of the foregoing, the plaintiff has been deprived of his following rights, privileges and immunities secured him by the constitution and the laws of the United States: the right to be secure in his person and effects against unreasonable search and seizure under the Fourth

and Fourteenth Amendments; the rights of the plaintiff not to be deprived of life, liberty or property without due process of law under the Fourth and Fourteenth Amendments; and the right to be free from a deprivation of his civil rights in violation of the statutes made and provided.

40. Plaintiff has been damaged as a result of the wrongful, negligent and illegal acts of the defendant CITY OF NEW YORK in the amount of One Million (\$1,000,000.00) Dollars.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally as follows:

- A. In favor of the plaintiff in the amount of One Million (\$1,000,000.00) Dollars;
- B. Awarding plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;
- C. Awarding plaintiff reasonable attorney's fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

FIFTH CLAIM FOR RELIEF
(MALICIOUS PROSECUTION)

41. Paragraphs 1 through 42 are incorporated herein by reference.

42. Defendants caused a false accusatory instrument to be filed against plaintiff.

43. The criminal instrument was dismissed and the criminal proceedings were favorably terminated.

44. Defendants have deprived plaintiff of his civil, constitutional, and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 U.S.C. §§ 1983 and 1985 and the New York State Constitution.

45. Plaintiff was damaged in the sum of One Million (\$1,000,000.00) Dollars as a result of the malicious prosecution implemented by the defendants.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally as follows:

- A. In favor of the plaintiff in the amount of One Million (\$1,000,000.00) Dollars;
- B. Awarding plaintiff punitive damages in the amount of One Million (\$1,000,000.00) Dollars;
- C. Awarding plaintiff reasonable attorney's fees, costs, and disbursements of this action;
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a jury trial.

Dated: New York, New York
October 12, 2011

BROMBERG LAW OFFICE, P.C.

By: 
Michael N. Litrownik
One of Plaintiff's Attorneys

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